IN THE
SUPREME COURT OF PENNSYLVANIA

No. 14 MAP 2022

DOUG McLINKO, and TIMOTHY BONNER, et al.,
Petitioners/Appellees,

v.

COMMONWEALTH OF PENNSYLVANIA, DEPARTMENT OF STATE, et al.,
Respondents/Appellants.

Consolidated Nos. 15, 17, 18 and 19 MAP 2022. On Appeal from the January 28, 2022, Orders of the Commonwealth Court, Nos. 244 MD 2021 and 293 MD 2021

INITIAL BRIEF OF APPELLANTS

Robert A. Wiygul (I.D. No. 310760)
John Hill (I.D. No. 328340)
HANGLEY ARONCHICK SEGAL PUDLIN & SCHILLER
One Logan Square, 27th Floor
Philadelphia, PA 19103-6933
(215) 568-6200

J. Bart DeLone (I.D. No. 42540)
OFFICE OF ATTORNEY GENERAL
15th Floor, Strawberry Square
Harrisburg, PA 17120
(717) 783-3226
Counsel for Respondents/Appellants

TABLE OF CONTENTS

STATEMENT OF JURISDICTION 1

ORDERS IN QUESTION 1

ORDER 1

ORDER 1

DENIED. 2

STATEMENT OF THE SCOPE AND STANDARD OF REVIEW 2

STATEMENT OF QUESTIONS INVOLVED 2

STATEMENT OF THE CASE 4

SUMMARY OF ARGUMENT 19

ARGUMENT 21

COMMONWEALTH OF PENNSYLVANIA TO PROPOSE AMENDMENTS TO THE 48

CONCLUSION 72

STATEMENT OF JURISDICTION

This Honorable Court has jurisdiction over these consolidated appeals pursuant to 42 Pa.C.S. § 723(a).

ORDERS IN QUESTION

This appeal is taken from the following Orders:

ORDER

AND NOW, this 28th day of January, 2022, it is ORDERED

that the application for summary relief filed by Petitioner Doug McLinko in the above-captioned matter is GRANTED. The application for summary relief filed by Respondent Veronica Degraffenreid, in her official capacity as Acting Secretary of the Commonwealth of Pennsylvania, is DENIED. Additionally, the preliminary objections filed by Veronica Degraffenreid, in her official capacity as Acting Secretary of the Commonwealth of Pennsylvania, and the Commonwealth of Pennsylvania, Department of State, and the preliminary objections filed by the Democratic National Committee and the Pennsylvania Democratic Party are DISMISSED as moot. (R.1906a-R.1907a.)

ORDER

AND NOW, this 28th day of January, 2022, it is ORDERED

that the application for summary relief filed by Petitioners Timothy R.

Bonner and 13 other members of the Pennsylvania House of Representatives in the above-captioned matter is GRANTED, in part. Act 77 is declared unconstitutional and void ab initio. Petitioners' request for injunctive relief, nominal damages and reasonable costs and expenses, including attorneys' fees, is DENIED. The application for summary relief filed by Respondents

Veronica Degraffenreid, in her official capacity as Acting Secretary of the Commonwealth of Pennsylvania, and the Department of State is

DENIED.

(R.1908a-R1909a.)

STATEMENT OF THE SCOPE AND STANDARD OF REVIEW

Each of the issues raised by Respondents/Appellants, the Pennsylvania Department of State and the Acting Secretary of the Commonwealth, presents a question of law. Accordingly, this Court's standard of review is de novo, and its scope of review is plenary. In re Administrative Order No. 1-MD-2003, 936 A.2d 1, 5-6 (Pa. 2007) (determining whether court had subject-matter jurisdiction); Dubose v. Quinlan, 173 A.3d 634, 643 (Pa. 2017) (interpreting statutory time bar); In re F.C. III, 2 A.3d 1201, 1213 n.8 (Pa. 2010) (resolving facial constitutional challenge to statute).

STATEMENT OF QUESTIONS INVOLVED

1. Did the Commonwealth Court err in exercising

jurisdiction over Petitioners' claims when Section 13(2) of Act 77 of 2019 vests this Court with exclusive jurisdiction to adjudicate constitutional challenges to the statute? Answer Below: No. Suggested Answer: Yes. 2. Did the Commonwealth Court err in holding that Petitioners' claims are not time-barred under Section 13(3) of Act 77, which provides that any constitutional challenge to the statute "must be commenced within 180 days of [October 31, 2019]"? Answer Below: No. Suggested Answer: Yes. 3. Did the Commonwealth Court err in holding that Act 77 was unconstitutional under Chase v. Miller, 41 Pa. 403 (1862), and In re Contested Election in Fifth Ward of Lancaster City, 126 A. 199 (Pa. 1924), notwithstanding that each of those cases was decided under an earlier version of the Pennsylvania Constitution containing provisions materially different from those in the current Constitution? Answer Below: No. Suggested Answer: Yes. 4. Assuming arguendo that the Commonwealth Court was bound by Chase and Lancaster City, should this Court overrule those cases because they were wrongly decided—and improperly prevent the General Assembly from providing for methods of voting that afford all qualified voters an equal opportunity, to the greatest degree

possible, to participate in the electoral process? Answer Below: No. Suggested Answer: Yes.

STATEMENT OF THE CASE

A. Summary of the Case

This case involves a facial constitutional challenge to a statute. Petitioners seek to invalidate certain provisions of Act 77 of 2019, which gave all qualified Pennsylvania voters the option of voting by mail.

This is no ordinary set of Petitioners. Most of them are Pennsylvania lawmakers who voted for Act 77. They now ask the courts to strike down what they enacted, asserting that they violated the Pennsylvania Constitution. Petitioners have also disregarded their own rules regarding when a facial constitutional challenge to Act 77 may be brought. The statute they supported expressly requires all such challenges to be brought within 180 days of Act 77's enactment. Yet Petitioners waited almost two years—while three elections using mail-in voting transpired—before filing suit.

The substance of Petitioners' claims is no less extraordinary. Petitioners do not contend that mail-in voting violates any individual constitutional right. To the contrary, Act 77 indisputably furthers the central purpose of the Constitution's Free and Equal Elections Clause—namely, to afford all Pennsylvania voters an equal opportunity, to the greatest degree possible, to access the franchise. Rather, Petitioners argue that three words in the Pennsylvania Constitution, tucked into the

third subsection of a clause defining who may vote, deprives the General Assembly of the power to prescribe a safe and secure voting method that has long been used in dozens of other states. Petitioners are undeterred by the fact that a separate section of the Constitution expressly gives the General Assembly nearly plenary power to prescribe voting methods.

Petitioners' argument relies not on the text, structure, or history of the relevant constitutional provisions, but on two century-old decisions under earlier—and materially different—versions of the Pennsylvania Constitution: Chase v. Miller, 41 Pa. 403 (1862), and In re Contested Election in Fifth Ward of Lancaster City, 126 A. 199 (Pa. 1924). As numerous other courts and commentators have recognized, the opinions in those cases cannot be reconciled with settled principles of constitutional interpretation; in any event, Chase and Lancaster City are readily distinguishable from the constitutional question currently before this Court.

Erroneously believing itself bound by these two cases, a 3-2 majority of the Commonwealth Court declared Act 77 unconstitutional. The court held that the Pennsylvania Constitution prevents the General Assembly from making voting more accessible for all Pennsylvanians. In fact, the Commonwealth Court should never have reached the merits of Petitioners' constitutional claim. Now that the issue is before this Court, however, it should conclusively distinguish Chase and Lancaster City or, if necessary, overrule them.

B. Statement of Facts 1. Pennsylvania's Act 77

In 2019, with the support of a bipartisan supermajority of both legislative chambers, the Pennsylvania General Assembly enacted Act 77 of 2019, which made several important updates and improvements to Pennsylvania's Election Code. Act of Oct. 31, 2019 (P.L. 552, No. 77), 2019 Pa. Legis. Serv. 2019-77 (S.B. 421) (West) ("Act 77"). Act 77 included provisions that, for the first time, offered the option of mail-in voting to Pennsylvania electors who did not qualify for absentee voting. See 25 P.S. §§ 3150.11–3150.17. This change, which allowed Pennsylvanians to use a method of voting already adopted in the majority of other states, 1 was a significant development that made it easier for all Pennsylvanians to exercise their fundamental right to vote. Act 77's other provisions included the elimination of straight-ticket voting, revisions to registration and ballot deadlines, modernization of various administrative requirements, and funding for counties to replace outdated voting systems.

Reflecting the complex negotiations and policy tradeoffs that were involved in persuading a Republican-controlled legislature and a Democratic Governor to National Conference of State Legislatures, Voting Outside the Polling Place: Absentee, All-Mail and Other Voting at Home Options, Table 1: States with No-Excuse Absentee Voting (Jan. 3, 2022), https://www.ncsl.org/research/elections-and-campaigns/vopp-table-1-states-with- no-excuse-absentee-voting.aspx (26

states (including Pennsylvania) and Washington D.C. allow any voter to "request and cast an absentee/mail ballot, no excuse or reason necessary," and 8 additional states conduct their elections entirely by mail). support the legislation, the General Assembly included a nonseverability provision stating that invalidation of certain sections of the Act, including the mail-in ballot provisions (an important Democratic legislative priority) and the straight-ticket voting provisions (a similarly important Republican priority), would void almost all of the Act. See Act 77 § 11. The General Assembly also understood that implementing such a significant overhaul of Pennsylvania's voting laws would be a lengthy, complex, and resource-intensive endeavor. It therefore sought to ensure that any challenges to the constitutionality of Act 77's major provisions, including mail-in voting, would be resolved before Act 77 was implemented. To that end, Section 13(2) of Act 77 gave the Pennsylvania Supreme Court "exclusive jurisdiction to hear a challenge to or to render a declaratory judgment concerning the constitutionality" of those provisions. See Act 77 § 13(2). And Section 13(3) provided that any such challenges must be brought within 180 days of the statute's effective date. See Act 77 § 13(3).

Act 77 was signed into law and became effective on October 31, 2019. See Act 77 § 15(3). The statutory 180-day period for challenges to the law expired on April 28, 2020. Neither Petitioners nor anyone else challenged the constitutionality

of Act 77's authorization of mail-in voting before that date. 2. Pennsylvania Voters Eagerly Embrace Mail-In Voting, and Act 77's Mail-In Voting Provisions Withstand a Constitutional Challenge Based on Arguments Identical to Those Asserted Here

By any practical measure, Act 77's mail-in voting provisions were a spectacular success. Within months of the statute's enactment, the COVID-19 pandemic swept into the Commonwealth. Because of voters' and election workers' concerns about the safety of in-person voting in a pandemic, voters immediately began voting by mail-in or absentee ballot in numbers far exceeding what was expected before the pandemic took hold. (R.127a-R.128a ¶ 6.) Pennsylvanians cast more than 4.7 million mail-in ballots during the 2020 and 2021 election cycles. 2 More than 1.3 million Pennsylvanians also have opted to vote by mail in future elections by requesting to be placed on a "permanent mail-in ballot list file," as provided by 25 P.S. § 3150.12(g)(1). (R.133a ¶ 25.) (See Appendix A at 7-8 (finding "no factual question that substantial resources have been expended by the Commonwealth and by county boards of elections to implement mail-in voting and that approximately 1,380,342 electors have been placed on the [permanent] mail-in ballot list file").)

See https://www.electionreturns.pa.gov/ReportCenter/Reports (permitting generation of election reports listing the total number of mail-in ballots). Of the

approximately 6.9 million Pennsylvanians who voted in the 2020 general election, approximately 2.7 million cast a mail-in or absentee ballot. (R.128a ¶ 10.)

On November 21, 2020, on the eve of certification of the 2020 presidential election, a different group of petitioners filed a lawsuit that challenged Act 77 on grounds identical to those asserted here. In Kelly v. Commonwealth, the petitioners alleged—as Petitioners do here—that the mail-in balloting provisions of Act 77 violate Article VII, § 1 of the Pennsylvania Constitution, which provides:

> Every citizen 21 years of age, possessing the following qualifications, shall be entitled to vote at all elections ….
>
> …
>
> 3. He or she shall have resided in the election district where he or she shall offer to vote at least 60 days immediately preceding the election …. PA. CONST. art. VII, § 1; see 240 A.3d 1255, 1256 (Pa. 2020), cert. denied sub nom. Kelly v. Pennsylvania, 141 S. Ct. 1449 (2021). Like the Petitioners here, the Kelly petitioners sought a declaratory judgment that the mail-in voting provisions of Act 77 run afoul of the phrase "offer to vote." See id. They argued that this phrase—which appears in a clause modifying a durational residency requirement in a provision delimiting who may vote—should be interpreted as prohibiting the General Assembly from authorizing any electoral method other than "in person" voting, notwithstanding that a separate provision of the Pennsylvania Constitution

expressly gives the General Assembly nearly plenary power to prescribe the permissible "methods" of voting, see PA. CONST. art VII, § 4. In support of their argument, the Kelly petitioners relied on two cases that are almost a century or more old: Chase v. Miller, 41 Pa. 403 (1862), a Civil War-era case decided under the Pennsylvania Constitution of 1838; and In re Contested Election in Fifth Ward of Lancaster City, 126 A. 199 (Pa. 1924), decided under the Constitution of 1874.

Exercising extraordinary jurisdiction, this Court dismissed the Kelly petition with prejudice. Kelly, 240 at 1257. The Court held that the Kelly petition "violates the doctrine of laches given [the Kelly petitioners'] complete failure to act with due diligence in commencing their facial constitutional challenge, which was ascertainable upon Act 77's enactment." Id. at 1256.

C. Procedural History 1. The McLinko and Bonner Petitions

On July 26, 2021, Doug McLinko, a long-time member of the Bradford County Board of Elections charged with administering Act 77 and other election laws,3 filed a petition for review along with an application for summary relief in the Commonwealth Court's original jurisdiction. Like the Kelly petitioners, McLinko relied upon Chase and Lancaster City to argue that the mail-in voting provisions of Act 77 violated the "offer to vote" provision of Article VII, § 1 of the Pennsylvania Constitution. (R.63a-R.67a.) Neither McLinko's Petition, nor any other paper he has filed in this case, explains why he waited nearly two years after

McLinko was last reelected to the Bradford County Board of Commissioners in 2019 and has been in office since at least 2012. See https://bradfordcountypa. org/department/ elections/ (using "Results" icon, permitting generation of reports for 2011, 2015, and 2019 elections). Act 77 was passed—during which time three elections took place and over 4 million mail-in ballots were cast4—to file his suit.

On August 31, 2021, fourteen sitting members of the Pennsylvania House of Representatives (the "Bonner Petitioners")—eleven of whom voted in favor of Act 77 (R.262a-265a ¶¶ 3-16)—filed a separate petition challenging Act 77, followed by an application for summary relief. The Bonner Petitioners relied on the same arguments and "offer to vote" language as McLinko. (See R.275a-R.281a.) They also asserted federal constitutional claims that are wholly derivative of their claim under the Pennsylvania Constitution: they alleged that because Act 77 purportedly violates the Pennsylvania Constitution, it also violates the U.S. Constitution. (See id., R281a-R283a.) Like McLinko, the Bonner Petitioners have offered no explanation for their delay in bringing suit. 5 See supra note 1. Ten of the Bonner Petitioners, in their capacity as members of the General Assembly, filed an amicus brief in support of the Kelly petitioners' unsuccessful application asking the Supreme Court of the United States to reverse this Court's decision and to enjoin Pennsylvania from certifying the results of the November 2020 general election. See Brief for Members of the Pennsylvania General Assembly, as Amicus Curiae

in Support of Applicants/Petitioners, Kelly v. Pennsylvania, No. 20A98 (U.S. filed Dec. 7, 2020), available at https://www.supremecourt.gov/DocketPDF/20/20A98/162797/ 20201207110117475_20A98%20General%20Assembly%20amicus.pdf.

2. The Commonwealth Court Consolidates McLinko and Bonner, Grants Intervention Applications by Both Democratic and Republican Entities, and Hears Argument on the Parties' Cross-Applications for Summary Relief

Respondents filed cross-applications for summary relief and preliminary objections in both the McLinko and Bonner actions. (R.134a-R.256a; R.418a-R.469a; R.507a-R.641a; R.731a-R.775a; R.895a-R.979a; R.1876a-R.1899a.) Their filings maintained that Petitioners' claims were flawed on a number of procedural grounds: (1) Petitioners failed to plead a basis for standing; (2) their claims, like those of the Kelly Petitioners, were barred by the doctrine of laches; and (3) their suits were untimely because they were brought outside the statutory time limit set forth in Section 13(3) of Act 77. Moreover, Respondents argued, Petitioners' constitutional arguments were meritless. Nothing in the Pennsylvania Constitution prohibited the General Assembly from adopting modern, secure voting methods making it easier for all Pennsylvanians to exercise the fundamental right to vote. To the contrary, the Constitution expressly authorizes the legislature to "prescribe[]" the permissible "method[s]" of voting. PA. CONST. art. VII, § 4.

The Commonwealth Court initially heard oral argument on September 22, 2021, limited to the cross-applications for summary relief in the McLinko action. Following the argument, the court deferred ruling on the parties' claims and defenses, consolidated the McLinko and Bonner cases, and ordered expedited briefing on cross-dispositive motions. (R.470a-R.471a.)

On October 26, 2021, the Commonwealth Court granted applications to intervene filed by the Republican Committees of Bulter, York, and Washington Counties (which intervened on the side of Petitioners) and the Democratic National Committee and Pennsylvania Democratic Party (which intervened on the side of Respondents). (See R.1532a-R.1534a.) On November 17, 2021, after receiving additional briefing, an en banc panel of the Commonwealth Court heard oral argument from all parties and Intervenors on the cross-applications for summary relief and preliminary objections in both consolidated actions. 6 3. The Commonwealth Court Rejects Respondents' Procedural Arguments and, in a Closely Divided 3-2 Decision, Holds That It Is Constrained, Under Two Century-Old Decisions, to Invalidate Mail-in Voting On January 28, 2022, the Commonwealth Court issued Orders and Opinions disposing of all claims in the McLinko and Bonner cases. First, the court rejected Respondents' standing and laches arguments. As to standing, the court held that all Petitioners had a

substantial, direct, and immediate interest in the outcome of the litigation; alternatively, they met the requirements for taxpayer

Following the initial oral argument, Petitioner McLinko filed an Amended Petition for Review on September 29, 2021. (R.472a-R.504a) The Amended Petition was identical to McLinko's initial Petition, other than the addition of certain allegations attempting to support McLinko's standing. (R.482a-R.485a.) Respondents filed Preliminary Objections to the Amended Petition on October 8, 2021. (R.731a-R.775a; see also R.895a-R.979a.) Pursuant to the Commonwealth Court's Orders, neither McLinko nor Respondents filed a renewed application for summary relief; the court directed that, "[f]or purposes of argument on the cross-applications for summary relief filed in McLinko, the parties should assume the facts pled in McLinko's amended petition for review." (R.1532a-R.1534a.) standing. (Appendix A at 35-40; Appendix B at 3-8.) As to laches, the Commonwealth Court recognized that this Court had rejected an identical constitutional challenge to Act 77 in Kelly. But the Commonwealth Court held that Kelly was not "on all fours" with this case because the Kelly petitioners sought to invalidate mail-in ballots that had already been cast, whereas Petitioners here seek only prospective relief. (Appendix A at 41-42 & n.32.)7 The Commonwealth Court also noted that Kelly was a per curiam order and therefore not precedential. (Appendix A at 41 n.32.) Finally, although the court acknowledged Respondents'

undisputed evidence showing profound prejudice—measured in millions of dollars of public resources and prospective voter confusion and disenfranchisement—flowing from Petitioners' unjustified delay in filing suit, the Commonwealth Court read this Court's precedent as foreclosing any laches defense to constitutional claims for prospective declaratory relief.8 (Id. at 42-44.)

But see Kelly, 240 A.3d at 1262 (Saylor, C.J., dissenting in part precisely because the majority had dismissed not only claims seeking to invalidate previously cast ballots, but also claims for prospective declaratory relief). Respondents do not press in this appeal the arguments they raised below regarding Petitioners' lack of standing or laches. Although Respondents maintain that none of Petitioners adequately pled standing, Respondents concede that an electoral candidate could have standing to challenge the statute. In addition, Respondents believe it is not in the public interest for the issues raised by Petitioners to be left open for future litigation. See Estate of Wilner, 127 A.3d 1286 (Pa. 2014) (standing in Pennsylvania is nonjurisdictional and therefore waivable). Similarly, given that the application of laches is a fact- and petitioner-specific question "to be determined case by case," Kelly, 240 A.3d 1255, 1257 (Wecht, J., concurring), Respondents withdraw that defense.

The Commonwealth Court also held that Petitioners' claims were not time-barred under Section 13(3) of Act 77, which states that "[a]n action under [Section

13(2)],” i.e., “a challenge to … the constitutionality of [mail-in voting],” “must be commenced within 180 days of [October 31, 2019].” Act 77, § 13(2), (3). According to the Commonwealth Court, Section 13(3) did not set a time limit on when constitutional challenges could be brought. Instead, the court read Section 13(2) (Act 77 grants “[t]he Pennsylvania Supreme Court … exclusive jurisdiction to hear a challenge to … the constitutionality of [mail-in voting]”) and 13(3) together as a single provision, namely, a time-limited grant of exclusive jurisdiction to the Supreme Court. Because Petitioners’ claims had been filed long after Section 13(3)’s 180-day period had expired, the Commonwealth Court concluded it had jurisdiction to determine Petitioners’ constitutional challenge. (Appendix A at 45-46.) The court further opined that time limitations on constitutional challenges to statutes are categorically impermissible. (Id. at 45, 47-48.)

Reaching the merits of the constitutional claims, a three-judge majority of the en banc panel (Senior Judge Leavitt and Judges McCullough and Fizzano Cannon) held “that Act 77 violates Article VII, Section 1 of the Pennsylvania Constitution.” (Appendix A at 49.) The majority did not base this conclusion on its own analysis of the text or structure of the current Constitution. The majority also did not examine how the language on which it relied was understood at the time it was added to the Constitution. Instead, the majority held that it was “bound” by

two century-old cases, Chase v. Miller, 41 Pa. 403 (1862), and In re Contested Election of Fifth Ward of Lancaster City, 126 A. 199 (Pa. 1924), decided under previous versions of the Pennsylvania Constitution. (Appendix A at 49.)

Notably, the majority recognized that "[n]o-excuse mail-in voting makes the exercise of the franchise more convenient," and that millions of Pennsylvanians had successfully used mail-in voting in four elections since Act 77 was enacted. (Appendix A at 49.) But the majority concluded that the court's hands were tied: Chase and Lancaster City required holding that the current Pennsylvania Constitution prohibits the General Assembly from allowing every Pennsylvanian to vote by mail. The court further noted that it could not consider any argument that Chase and Lancaster City be overruled; 9 such an argument "can be raised only to the Pennsylvania Supreme Court." (Appendix A at 26 n.23.)10 The majority opinion states that "[t]he Democratic Intevenors" argued "that Chase and Lancaster City" should, if necessary, "be overruled." (Appendix A at 26 n.23.) In fact, Respondents made the same argument. (See R.200a (maintaining that Chase and Lancaster City "should not be followed" because, among other reasons, "they were wrong at the time they were decided … and, if anything, are even more erroneous under current jurisprudence governing constitutional challenges to duly enacted statutes").)

Having held Act 77 invalid under the Pennsylvania Constitution, the Commonwealth Court granted Petitioner McLinko's application for summary relief in full, denied Respondents' cross-application, and dismissed Respondents' preliminary objections as moot. (R.1906a- R.1907a.) With respect to the Bonner case, the Commonwealth Court observed that its holding

Writing in dissent, Judge Wojcik, joined by Judge Ceisler, vigorously disagreed that no-excuse mail-in voting violated Article VII of the Pennsylvania Constitution. In the dissent's view, the majority had not paid sufficient heed to the fundamental rule that a statute is not to be "deemed unconstitutional unless it clearly, palpably, and plainly violates the Constitution." (Appendix C at 5.) Petitioners had failed to carry their heavy burden because, inter alia, "article VII, section 4 [of the Constitution] by its plain language specifically empowers the General Assembly to provide for … casting a no-excuse mail-in ballot." Id. at 10. Chase and Lancaster City did not control the constitutionality of Act 77, Judge Wojcik opined, and the majority erred in treating those decisions as binding. (Appendix C at 4-9.)

D. Statement of Orders Under Review

The Orders under review are the Commonwealth Court's Orders dated January 28, 2022, declaring Act 77 void ab initio under the Pennsylvania Constitution and denying Respondents' applications for summary relief. under the

Pennsylvania Constitution obviated the need to "address [the Bonner] Petitioners' claims under the United States Constitution." (Appendix B at 3 n.5, 8 n.12.) The court denied the Bonner Petitioners' request for injunctive relief, nominal damages, attorneys' fees and costs. (Id. at 3 (injunctive relief was unnecessary given award of declaratory relief); id. at 8 n.12.) Finally, the court denied Respondents' cross-application for summary relief. (R.1908a- R.1909a.)

SUMMARY OF ARGUMENT

The Commonwealth Court lacked jurisdiction to adjudicate Petitioners' constitutitional challenge to Act 77's mail-in voting provisions. Putting aside that threshold defect, the court erred in holding Petitioners' claims to be timely and further erred in determining that the Pennsylvania Constitution prohibited the General Assembly's bipartisan election reforms.

First, Act 77 unambiguously states that "[t]he Pennsylvania Supreme Court has exclusive jurisdiction to hear a challenge to or render a declaratory judgment concerning the constitutionality of," inter alia, the statute's mail-in voting provisions. To avoid the plain meaning of this jurisdictional limitation, the Commonwealth Court relied on a distinct sub-section, which requires that "[a]n action [challenging the constitutionality of mail-in voting] must be commenced within 180 days of [October 31, 2019,] the effective date of this section." By their clear terms, the two sub-sections (1) grant this Court exclusive jurisdiction over constitutional challenges to mail-in voting and (2) require any constitutional

challenges to be brought by April 28, 2020. But the Commonwealth Court conflated the two sub-sections into a single provision: a grant of exclusive jurisdiction that expired after only 180 days. That interpretation contravenes the text, structure, and purpose (as confirmed by legislative history) of the statute. The Commonwealth Court acted without jurisdiction.

Second, due to the same misreading, the Commonwealth Court failed to recognize that Petitioners' claims—which were filed well over a year after April 28, 2020—were time-barred. The court also held, erroneously, that any time limitation on facial constitutional challenges to a statute would itself be unconstitutional. But that is not the law. The court's holding relies on decisions involving entirely different arguments and circumstances; those decisions have no bearing on this case. The General Assembly had good reasons for requiring any facial constitutional challenges to Act 77 to be brought within 180 days of its enactment, and Petitioners here could easily have filed their actions within this period. Having failed to do so, their claims must be dismissed.

Finally, Petitioners' constitutional claims fail on the merits. To carry their heavy burden, Petitioners must show that the Pennsylvania Constitution "clearly, palpably, and plainly" prohibits the General Assembly from authorizing mail-in voting. But Petitioners do not come close to clearing this bar. There is nothing in the text or structure of the current Constitution that prohibits the General Assembly

from providing for the return of ballots by mail, let alone does so clearly, palpably, and plainly. The statute challenged here is not alleged to infringe any individual rights or violate the separation of powers between the branches of government.

To the contrary, Act 77 indisputably makes the fundamental right to vote more accessible to all Pennsylvanians. Petitioners' argument relies on a tortured reading of the Pennsylvania Constitution that would give the Legislature authority to prescribe methods of voting in one section, while sneaking an in-person voting requirement into a different section that does not deal with methods of voting at all. The only basis for Petitioners' contention is two century-old cases. But as two Commonwealth Court judges recognized, those cases are inapplicable because they dealt with long-since-replaced versions of the Constitution; moreover, they were wrongly decided at the time, as confirmed by high-court decisions interpreting near-identical provisions in the constitutions of other states. This Court should put an end, once and for all, to the theory that an obscure phrase in the Pennsylvania Constitution somehow forbids the General Assembly from adopting reforms already in place in most other states—and from making modern, secure, and accessible methods of voting available to all Pennsylvania voters.

ARGUMENT

A. Petitioners Cannot Maintain Their Claims Under Act 77's Statutory Structure for Judicial Review

The General Assembly created a clear structure for judicial review of Act 77. That structure precluded the Commonwealth Court from exercising jurisdiction over Petitioners' facial constitutional challenge, and it imposed a constitutionally permissible time limit—which Petitioners grossly exceeded—for bringing such a challenge. 1. Section 13(2) of Act 77 Vests This Court With Exclusive Jurisdiction Over Petitioners' Facial Constitutional Challenge to Mail-in Voting; Section 13(3) Separately Required Facial Constitutional Challenges to Be Brought by April 28, 2020

Under the plain language of Section 13 of Act 77, the Commonwealth Court did not have jurisdiction to decide Petitioners' claims.

Section 13 provides in pertinent part:

> (1) This section applies to … the following provisions of the act: …
>
> (xxi) Article XIII-D [and other provisions of Act 77 authorizing no-excuse mail-in voting].
>
> (2) The Pennsylvania Supreme Court has exclusive jurisdiction to hear a challenge to or to render a declaratory judgment concerning the constitutionality of a provision referred to in paragraph (1)….
>
> (3) An action under paragraph (2) must be commenced within 180 days of the effective date of this section [i.e., by April 28, 2020].

Act 77, § 13 (emphasis added). Section 13 indisputably applies here. Petitioners have

asserted facial constitutional challenges to provisions of Act 77 listed in Section 13(1). (See R.485a (seeking a declaration that "Article XIII-D [of Act 77] violates the Pennsylvania Constitution"); R.278a-R.279a, R.284a (same).) Section 13(2) grants the Pennsylvania Supreme Court exclusive jurisdiction to adjudicate facial constitutional challenges to these provisions. Petitioners, however, brought their challenges in the Commonwealth Court. Because this Court had and has exclusive jurisdiction over Petitioners' claims, the Commonwealth Court's Orders are void for lack of subject-matter jurisdiction.11

The Commonwealth Court determined that "Act 77 gave the Pennsylvania Supreme Court exclusive jurisdiction to hear challenges to the enumerated provisions of Act 77 for [only] the first 180 days after enactment. Thereafter, such constitutional challenges reverted to this Court in accordance with the Judicial Code." (Appendix A at 46.) But that conclusion cannot be reconciled with the plain language of Section 13, which is "[t]he best indication of legislative intent." Crown Castle NG E. LLC v. Pa. Pub. Util. Commn., 234 A.3d 665, 674 (Pa. 2020); accord 1 Pa.C.S. § 1921. The clear text of Section 13(2) and Section 13(3), as well as the overall structure of Section 13, establishes that Section 13(3) imposes a time Respondents did not challenge the Commonwealth Court's jurisdiction in the proceedings below. Nonetheless, it is axiomatic that "[j]urisdiction of subject matter can never attach nor be acquired by consent or waiver of the parties."

McGinley v. Scott, 164 A.2d 424, 428 (Pa. 1960). limitation on when facial constitutional challenges to Act 77 may be brought, and does not alter Section 13(2)'s grant of exclusive jurisdiction to this Court.

As its plain text makes clear, Section 13(2) does not include any language limiting or modifying the length of this Court's exclusive jurisdiction over constitutional challenges to Act 77. Section 13(3), by contrast, does contain durational language, but Section 13(3) is expressly not addressed to subject-matter jurisdiction. Instead, Section 13(3) states that an "action under paragraph (2) must be commenced within 180 days" of October 31, 2019. Act 77, § 13(3) (emphasis added).

The phrases "action under paragraph (2)" and "must be commenced" each demonstrate that Section 13(3) operates as an independent time bar on lawsuits rather than limiting the length of this Court's exclusive jurisdiction. Id. An "action" means a lawsuit; it does not refer to (or otherwise limit) the concept of jurisdiction. See Bayview Loan Servicing, LLC v. Lindsay, 185 A.3d 307, 313 (Pa. 2018) ("action" means "a judicial proceeding … in which the plaintiff seeks some form of relief"). The only "action" identified in Section 13(2) is a "challenge to … the constitutionality of" Act 77. Act 77, § 13(2). Thus, an "action under paragraph (2)" is a lawsuit asserting constitutional challenges to Act 77. Id. § 13(3).

Moreover, the phrase "must be commenced" "mirrors traditional statute of limitation language." Dubose v. Quinlan, 173 A.3d 634, 647 (Pa. 2017); see McCreesh v. City of Philadelphia, 888 A.2d 664, 671 (Pa. 2005) ("our legislature has enacted statutes of limitations that require actions to be 'commenced' within certain time-frames depending on the nature of the underlying claims" (emphasis added)). Put simply, the phrase "must be commenced" cannot reasonably be read as referring to exclusive jurisdiction. Actions and lawsuits are commenced; jurisdiction is exercised.

Section 13's division into subsections further confirms that Section 13(3) is not a time limit on the grant of exclusive jurisdiction in Section 13(2). If the General Assembly had intended to give this Court exclusive jurisdiction for only 180 days (with jurisdiction over constitutional challenges reverting to the Commonwealth Court on day 181), it would have drafted Section 13(2) to say: "For 180 days following the effective date of this statute, [t]he Pennsylvania Supreme Court has exclusive jurisdiction to hear a challenge to or to render a declaratory judgment concerning the constitutionality of a provision referred to in paragraph (1)." Act 77, § 13(2) (underlined text added). It did not do so, and nothing in Section 13 indicates that it meant to do so. By dividing Sections 13(2) and 13(3) into separate "subsection[s]," the legislature made clear that the provisions were "distinct and separate." See Commonwealth v. DeBellis, 165 A.2d

77, 78 (Pa. 1960). 2. Petitioners' Facial Constitutional Challenge Is Foreclosed by Section 13(3)'s Statutory Time Bar

As discussed above, Section 13(3) of Act 77 requires that certain constitutional challenges to the Pennsylvania Election Code, including challenges to Act 77's mail-in voting provisions, "must be commenced within 180 days" of October 31, 2019. Section 13(3), Act 77. Indeed, irrespective of whether Section 13(3) limits the duration of this Court's exclusive jurisdiction, it is indisputably also a time limit on when claims can be brought, because it "require[s] actions to be 'commenced' within [a] certain time-frame[]." McCreesh, 888 A.2d at 671.

The Petitions raise facial constitutional challenges to provisions identified in Section 13(1), and thus are paradigmatic examples of actions that were required to be filed by April 28, 2020. That date had long since come and gone when Petitioner McLinko sued on July 26, 2021, and the Bonner Petitioners sued on August 31, 2021. Therefore, their claims must be dismissed as untimely. 3. Legislative History Confirms that Section 13 Contains an Exclusive Jurisdiction Provision and a Distinct Time Limitation on When Facial Constitutional Claims Can Be Brought

The legislative history of Act 77, the mischief to be remedied, and the occasion and necessity of Act 77 all confirm that the Commonwealth Court misconstrued Section 13. See 1 Pa.C.S. § 1921(c)(1), (3), (6), (7).

The legislative history of Act 77 confirms that Section 13(2) is a standalone exclusive-jurisdiction provision and that Section 13(3) is a separate time bar on the assertion of claims. During the General Assembly's consideration of Act 77, a member stated her "understanding that the bill says that the Supreme Court will have exclusive jurisdiction over challenges to elimination of straight-party voting, absentee voting, and mail-in voting." Government Committee Chair Everett agreed: "[T]he section that you mentioned … gives the Supreme Court of Pennsylvania jurisdiction." See 2019 Pa. Legislative Journal—House 1740 (Oct. 29, 2019).

Later in the same exchange, Committee Chair Everett confirmed that Section 13(3) is a time bar that was designed to avoid exactly the sort of harm created by Petitioners' claims here, i.e., prejudicial delay: "[T]here is also a provision that the desire is … that suits be brought within 180 days so that we can settle everything before [Act 77] would take effect." Id. In other words, Section 13(3) was included in Act 77 to ensure that the legislature's grand bipartisan statute would either stand or fall as a whole, and that if it were to fall, it would fall before being used in an election. See id. The General Assembly was no doubt aware that overturning an election statute after the public had come to rely on it would be disruptive, costly, and potentially disenfranchising. (See R.128a-133a ¶¶ 9-26.) It clearly wanted to discourage precisely the gamesmanship that has occurred in this case, that is,

politicians waiting to see the political results of Act 77's various reforms—in particular, the net effect of permitting no-excuse mail-in voting while eliminating straight-ticket voting—before deciding whether to challenge the statute.

There appears to be no reason—certainly the Commonwealth Court did not identify one—why the General Assembly would want this Court to determine facial constitutional challenges brought in the first 180 days of Act 77, but then pass the jurisdictional baton to the Commonwealth Court to make the same types of constitutional decisions later. Such a scheme would directly undermine the manifest purpose of Sections 13(2) and (3)—to ensure that any constitutional challenge to Act 77 was finally resolved as quickly as possible. Indeed, such a rule would not just fail to prevent dilatory filings; it might cause them, inviting litigants to forum shop by waiting to file until the jurisdictional changeover date. That would be an absurd result. 4. The General Assembly Has the Power to Set Deadlines for Challenges to Act 77, Including Actions Bringing Facial Constitutional Claims

As the U.S. Supreme Court has observed, a "constitutional claim can become time-barred just as any other claim can. Nothing in the Constitution requires otherwise." Block v. N. Dakota ex rel. Bd. of Univ. & Sch. Lands, 461 U.S. 273, 292 (1983) (collecting cases). Indeed, courts across the country have held that time limitations like the one in Act 77 are constitutional and consistent

with due process. See, e.g., Dugdale v. U.S. Cust. & Border Protec., 88 F. Supp. 3d 1, 8 (D.D.C. 2015) (upholding federal law requiring constitutional challenges to certain statutory provisions, regulations, or procedures to be filed within 60 days of implementation); Greene v. Rhode Island, 398 F.3d 45, 53-55 (1st Cir. 2005) (rejecting due process challenge to 180-day time limitation for bringing constitutional challenges to federal statute); Native Am. Mohegans v. United States, 184 F. Supp. 2d 198, 202 (D. Conn. 2002) (holding that statutory 180-day time limitation for bringing constitutional challenges to statute "does not violate due process because plaintiffs' constitutional challenges could have been brought within 180 days of" statute's enactment).

The Commonwealth Court wrongly concluded that "this precedent is irrelevant," stating that none of the cases "stand for the proposition that a legislature can prevent judicial review of a statute, whose constitutionality is challenged, with a statute of limitations of any duration." (Appendix A at 45.) As an initial matter, statutory time bars—including the one in Section 13(3) of Act 77—do not prevent judicial review of a statute; they limit the period within which a plaintiff can bring a claim. "Statutes of limitations [embody] that principle of the common law which is expressed in the maxim vigilantibus non dormientibus subveniunt leges," i.e., the laws serve those who are vigilant, not those who are sleeping. Forster v. Cumberland Val. R. Co., 23 Pa. 371, 371 (1854). And the cases

identified above undeniably stand for the proposition that a legislature can limit the time for facial challenges of a statute's constitutionality. For example, in Greene, the First Circuit Court of Appeals applied a statute of limitations that stated: "[A]ny action to contest the constitutionality of this subchapter shall be barred unless the complaint is filed within one hundred eighty days of September 30, 1978." 398 F.3d at 47 (quoting 25 U.S.C. § 1711). The court held that "Section 1711 bars the constitutional claims put forth by the [plaintiffs] in this suit." Id. at 53. Section 13(3) of Act 77 likewise bars Petitioners' constitutional claims here.

To the extent the application of Section 13(3) presents any constitutional concern, it is with respect to as-applied challenges to Act 77's constitutionality based on events that take place after the 180-day period ends. A holding that such challenges can be time-barred before they are ripe could raise due process concerns. Turner v. People of State of New York, 168 U.S. 90, 94 (1897) (statutory time bars must "provide[] a reasonable time, taking into consideration the nature of the case, … for bringing an action … before the bar takes effect"); 51 Am. Jur. 2d Limitations of Actions § 33 (2022). If and when such claims arise, a court could plausibly determine that Section 13(3) cannot apply to these challenges. But that is not this case; the challenge in this case is facial, not as-applied, and Petitioners could have brought it on the date the statute was enacted. Kelly, 240 A.3d at 1256 ("Petitioners' … facial constitutional challenge … was ascertainable upon Act 77's

enactment."); see Phila. Ent'mt & Dev. Partners & City of Phila., 937 A.2d 385, 392 n.7 (Pa. 2007) ("facial challenges are … ripe upon mere enactment of the ordinance"). Accordingly, the time bar raises no due process concerns in this case.

5. The Political Question Doctrine and "Void Ab Initio" Case Law Have No Bearing on Whether to Enforce Section 13(3) of Act 77

In refusing to apply Section 13(3), the Commonwealth Court improperly relied on the political question doctrine and this Court's decision in Glen-Gery Corp. v. Zoning Hearing Board of Dover Township, 907 A.2d 1033 (Pa. 2006), neither of which applies here. First, the Commonwealth Court cited two decisions by this Court, which rejected the argument that certain constitutional claims were nonjusticiable under the political question doctrine, for the proposition that "[t]he General Assembly cannot insulate Act 77 from judicial review." (Appendix A at 47 (citing William Penn Sch. Dist. v. Pa. Dept. of Educ., 170 A.3d 414 (Pa. 2017), and Robinson Twp. v. Commonwealth, 83 A.3d 901 (Pa. 2013)). But unlike the political question doctrine, Section 13 of Act 77 is not a judicially created justiciability doctrine immunizing from review questions "entrusted exclusively and finally to the political branches of government for 'self-monitoring.'" Robinson Township, 83 A.3d at 928; accord William Penn, 170 A.3d at 438 (same). Instead, Section 13 merely ensures that untimely claims do not cause widespread prejudice and disenfranchisement or reward political gamesmanship.

Second, relying on Glen-Gery, the Commonwealth Court incorrectly concluded that if mail-in voting is unconstitutional, then all of Act 77, including Section 13(3), is void ab initio. Glen-Gery is not on point. That case held that "a claim alleging a procedural defect affecting notice or due process rights in the enactment of an ordinance may be brought notwithstanding" the claimant's failure to comply with a statutory time limitation. 907 A.2d at 1035 (emphasis added). That conclusion makes perfect sense: Basic principles of due process require that, before a limitations period can bar a challenge to a law, the claimant must be given constitutionally adequate notice of the law's enactment.

But there is no allegation that Act 77 suffers from any such procedural defect. Cf. Glen-Gery, 907 A.2d at 1044. Nor could there be. Indeed, many of the Bonner Petitioners voted to enact Act 77, and Petitioner McLinko has been personally involved in administering the law since it was enacted. Instead, Petitioners' facial challenge constitutes a substantive attack on only the mail-in voting provisions of Act 77—one portion of a multi-faceted statutory overhaul that revised numerous provisions in the Election Code. Petitioners challenged neither the enactment of Act 77 as a whole nor the many other changes made by Act 77.12 Glen-Gery's holding simply has no application in a case like this.

There is no dispute that Petitioners could have brought their claims in accordance with Section 13(3)'s time limitation. They failed to do so. Accordingly,

their claims are barred. 6. This Court's Non-Precedential Order in Delisle Does Not Dictate a Different Interpretation of Section 13

The Commonwealth Court relied on a per curiam order in Delisle v. Boockvar, 234 A.3d 410 (Pa. 2020), to support both its jurisdiction and its conclusion that Section 13 contains no time limitation on facial constitutional challenges. That reliance was misplaced. In Delisle, this Court transferred a challenge to Act 77 to the Commonwealth Court because "[t]he Petition for Review was filed outside of the 180-day time period from the date of enactment of Act []77 during which this Court had exclusive jurisdiction to decide specified Significantly, although Act 77 contains a non-severability provision connecting the fate of certain specified provisions, Section 13 is not one of those nonseverable provisions. See Act 77, § 11. That is because the entire purpose of Section 13(3) is to foreclose untimely challenges to the constitutionality of various substantive provisions of the statute. constitutional challenges to" Act 77. Id. at 410-11. Delisle does not control this case for at least two reasons.

First, Delisle involved an as-applied challenge to Act 77. The Delisle petitioners did not assert that Act 77 was facially unconstitutional (as Petitioners claim here). Instead, the Delisle petitioners argued that, because of the pandemic and mail delays, Act 77's deadline for submission of mail-in ballots would have the effect of violating Pennsylvania's Free and Equal Elections Clause and Equal

Protections Guarantees on an as-applied basis. Petition for Review ¶¶ 65-101, Delisle v. Boockvar, No. 95 MM 2020 (Pa. May 25, 2020). The distinction between facial and as-applied challenges is significant, as the former would be ascertainable immediately upon Act 77's enactment (and could easily be brought before the 180-day time bar ran), while the latter could conceivably arise after 180 days.

Second, because Delisle is a per curiam order, its "legal significance … is limited to setting out the law of the case. This Court has made it clear that per curiam orders have no stare decisis effect." Commonwealth v. Thompson, 985 A.2d 928, 937 (Pa. 2009) (collecting cases). And, in fact, another, more recent per curiam order from this Court characterized Section 13(3) as a time bar on constitutional challenges brought after 180 days of Act 77's effective date. See Kelly, 240 A.3d at 1257 n.4 (Section 13(3) "provid[es] for a 180-day period in which constitutional challenges may be commenced"). For all of these reasons, Respondents respectfully submit that Delisle provides no basis for refusing to apply the unambiguous language of Section 13, which divested the Commonwealth Court of jurisdiction over Petitioners' claims and—separately and in any event—barred those claims as untimely. 13

B. The Commonwealth Court Erred in Concluding That Act 77's Mail-In Voting Provisions Violate the Pennsylvania Constitution

Quite apart from the statutory time bar, Petitioners failed to carry their heavy burden of demonstrating that Act 77's mail-in voting provisions are unconstitutional. 1. Mail-in Voting, Which Furthers the Goals of the Free and Equal Elections Clause, Is Constitutional

In challenging an act of the General Assembly under the Pennsylvania Constitution, Petitioners assume an extraordinarily heavy burden. All "powers not expressly withheld from the [Pennsylvania] General Assembly inhere in it." Stilp v. Commonwealth, 974 A.2d 491, 494–95 (Pa. 2009). As this Court has warned: "The Constitution has given us a list of the things which the legislature may not do. If we extend that list, we alter the instrument, we become ourselves the aggressors, Because the Commonwealth Court lacked subject-matter jurisdiction over Petitioners' claims, the Court should vacate the decisions below. This Court, however, indisputably has jurisdiction over Petitioners' claims. Accordingly, Respondents respectfully request that the Court proceed to determine whether Petitioners' claims were timely under Section 13(3) of Act 77 and whether the Pennsylvania Constitution prohibits mail-in voting. and violate both the letter and spirit of the organic law as grossly as the legislature ever could." Id. at 495 (internal quotation marks omitted).

Accordingly, "[i]t is foundational that all legislation duly enacted by the General Assembly enjoys a strong presumption of validity." Commonwealth v.

Bullock, 913 A.2d 207, 211 (Pa. 2006). The burden to overcome this presumption is "very heavy." Stilp, 974 A.2d at 495. "[A] statute will not be declared unconstitutional unless it clearly, palpably, and plainly violates the Constitution.'" Pennsylvanians Against Gambling Expansion Fund, Inc. v. Commonwealth, 877 A.2d 383, 393 (Pa. 2005) (emphasis in original). Consequently, "[a]ll doubts are to be resolved in favor of finding that the legislative enactment passes constitutional muster." Id.

If anything, that deference to the legislature applies with even greater force here. Petitioners do not claim Act 77 invades any constitutional right or violates the separation of powers among the coordinate branches of government. Instead, Petitioners ask this Court to abridge the legislature's exercise of its core powers to enact policy in the public interest—here, the power to enact procedures making exercise of the franchise more convenient and accessible for all Pennsylvania voters. See Commonwealth v. Torsilieri, 232 A.3d 567, 596 (Pa. 2020) ("[W]hile courts are empowered to enforce constitutional rights, they should remain mindful that 'the wisdom of public policy is one for the legislature ….'"). In fact, far from violating any constitutional right, Act 77 directly underwrites one of the core guarantees of the Constitution's Free and Equal Elections Clause: By ensuring that voters who live far from their polling places or have difficulty taking time off work on election day—or who are at high risk from COVID-19—are afforded equal

access to the franchise, Act 77's mail-in voting procedures ensure that "all aspects of the electoral process, to the greatest degree possible, [are] kept open and unrestricted to the voters of our Commonwealth, and, also, conducted in a manner which guarantees, to the greatest degree possible, a voter's right to equal participation in the electoral process for the selection of his or her representatives in government." League of Women Voters v. Commonwealth, 178 A.3d 737, 802, 804 (Pa. 2018) (construing PA. CONST. art. I, § 5). In sum, it is difficult to imagine a legislative act entitled to more judicial deference than the one at issue here. 2. Petitioners' Interpretation Contravenes the Text, Structure, and History of the Pennsylvania Constitution

In analyzing a provision of the Pennsylvania Constitution, this Court examines "at least the following four factors: 1) text of the constitutional provision; 2) history of the provision including Pennsylvania case-law; 3) related case-law from other states; and 4) policy considerations, including unique issues of state and local concern, and applicability within modern Pennsylvania jurisprudence." Commonwealth v. Edmunds, 586 A.2d 887, 895 (Pa. 1991); accord Robinson Twp., 83 A.3d at 944.

This Court's "ultimate touchstone is the actual language of the constitution itself." Yocum v. Commonwealth, Pa. Gaming Control Bd., 161 A.3d 228, 239 (Pa. 2017) (internal quotation marks omitted). The court seeks the "ordinary, natural

interpretation the ratifying voter would give" to those provisions, and avoids reading them "in a strained or technical manner." Zemprelli v. Daniels, 436 A.2d 1165, 1170 (Pa. 1981) (internal quotation marks omitted). "If the words of a constitutional provision are not explicit, [this Court] may [look] to … the occasion and necessity for the provision; the circumstances under which the amendment was ratified; the mischief to be remedied; the object to be attained; and the contemporaneous legislative history." League of Women Voters, 178 A.3d at 802.

Petitioners' challenge to Act 77's mail-in voting provisions rests on two provisions of the Pennsylvania Constitution. Article VII, § 1, entitled "Qualifications of electors," prescribes the age, citizenship, and residency requirements that a person must satisfy to be deemed eligible to register and vote in Pennsylvania elections. Article VII, § 14, entitled "Absentee voting," requires that "[t]he Legislature … provide a manner in which qualified voters who may, on the occurrence of any election, be absent from the municipality of their residence [for certain specifically defined reasons]," or "unable to attend a polling place" for reasons of illness, disability, or religious observance, may vote. As shown below, Petitioners' attack on Act 77 is belied by the plain language of these provisions, their history, and the structure of Article VII as a whole. (a) Article VII, § 1 Addresses Who May Vote, Not How They May Vote (i) The Text and Structure of

Article VII, § 1—and of Other Constitutional Provisions—Confirm That § 1 Is a "Qualifications" Clause, Not a "Methods" Clause

As its title indicates, Section 1 of Article VII addresses only the criteria for voting eligibility in Pennsylvania. It provides, in its entirety:

> Qualifications of electors.
>
> Every citizen twenty-one years of age, possessing the following qualifications, shall be entitled to vote at all elections subject, however, to such laws requiring and regulating the registration of electors as the General Assembly may enact.
>
> 1. He or she shall have been a citizen of the United States at least one month.
> 2. He or she shall have resided in the State ninety (90) days immediately preceding the election.
> 3. He or she shall have resided in the election district where he or she shall offer to vote at least sixty (60) days immediately preceding the election, except that if qualified to vote in an election district prior to removal, he or she may, if a resident of Pennsylvania, vote in the election district from which he or she removed his or her residence within sixty (60) days preceding the election. PA. CONST. art. VII, § 1 (underlining added).

Based on its plain language, structure, and title, the meaning of this provision is clear. It limits the right to vote in Pennsylvania elections to citizens of a certain age

who have been a U.S. citizen for at least a month. It also prescribes residency requirements—namely, the prospective voter must have resided in Pennsylvania at least 90 days immediately preceding the election and have resided in the specific election district in which she seeks to vote for at least 60 days. Article VII, § 1 also provides for cases in which a person was qualified to vote in an election district but then moves her residence to a different Pennsylvania election district within 60 days of an election. That person is not eligible to vote in her new district's electoral contests (because she does not satisfy the 60-day residency requirement), so § 1 allows her to vote in her old district's contests.

As the authority interpreting "residence" makes clear, the qualifications set forth in § 1 do not include any requirement of physical presence at the time of the election; a person may maintain a "residence" in a given state and election district even while she is physically absent from them. The constitutional concept of residence is synonymous with the concept of domicile; it refers to the elector's "permanent or true home," the place to which, when she engages in temporary departures, she "intends to return." In re Case of Fry, 71 Pa. 302, 309–10 (1872); accord In re Stack, 184 A.3d 591, 597 (Pa. Commw. Ct. 2018) (citing In re Lesker, 105 A.2d 376, 380 (Pa. 1954)). This definition is consistent with the meaning of the term "residence" as it is used in the Election Code. See 25 P.S. § 2814.

Indeed, the other provision on which Petitioners rely (Article VII, § 14) confirms that physical absence, without an intention to establish a new permanent abode, does not defeat residence. That provision mandates that the Legislature establish a means for certain "qualified electors" who are "absent from the municipality of their residence" on election day to vote in their election district's electoral contests, and to provide "for the return and canvass of their votes in the election district in which they respectively reside." PA. CONST. art. VII, § 14(a) (emphasis added).

Thus, nothing in the text or structure of Article VII, § 1 imposes restrictions on the method by which voters may vote. Rather, that constitutional provision is addressed to the subject matter identified in its title: it establishes the age, citizenship, and durational-residency "qualifications" to vote. Put differently, the provision addresses who may vote in a given election, not how they may vote. (ii) The Phrase "Offer to Vote" Does Not Sneak a Restriction on Voting Methods into a Provision Expressly Addressed Solely to Who May Vote

Petitioners, however, purport to divine an implicit restriction on how people may vote from the third qualification enumerated in § 1—namely, the requirement that a prospective voter "shall have resided in the election district where he or she shall offer to vote at least sixty (60) days immediately preceding the election." PA. CONST. art. VII, § 1. According to Petitioners, the modifying clause "where he or

she shall offer to vote" (which describes only the election district in which the voter must reside) should actually be understood as an across-the-board, unyielding constitutional nullification of the Legislature's power to allow any qualified electors to vote other than in person.

Petitioners' interpretation is precisely the sort of "strained" construction of constitutional text that Pennsylvania courts are required to avoid. Zemprelli, 436 A.2d at 1170. As the late Justice Antonin Scalia remarked, those who make our law do not "hide elephants in mouseholes." Whitman v. Am. Trucking Assocs., 531 U.S. 457, 468 (2001). If the framers of the Pennsylvania Constitution had intended to limit the voting methods that the Legislature could establish, they could easily have done so—and presumably would have done so in a constitutional provision addressed to how people vote, rather than by indirect implication from use of the word "offer" in the third subsection of a separate provision addressed only to who may vote.

In fact, the Pennsylvania Constitution actually does contain a separate provision expressly addressing the "method" of voting. Article VII, § 4, which is entitled "Methods of elections; secrecy in voting," states that "[a]ll elections by the citizens shall be by ballot or by such other method as may be prescribed by law: Provided, That secrecy in voting be preserved." PA. CONST. art. VII, § 4 (emphasis added). There can thus be no doubt about where the Pennsylvania

Constitution speaks to these issues or what it says about them. The plain words of the constitutional provision specifically addressed to voting methods expressly give the Legislature plenary power over such methods, subject only to the requirement that any method authorized by the Legislature preserve the secrecy of the vote.14 The existence of this separate provision precludes Petitioners' interpretation of Article VII, § 1. See Zauflik v. Pennsbury Sch. Dist., 104 A.3d 1096, 1126 (Pa. 2014) ("the Constitution [should be read as] an integrated whole").

Declining to read Article VII, § 4 as written, or as part of a cohesive constitutional plan to govern voting, the Commonwealth Court determined that "such other method as may be prescribed by law" (a) refers only to voting machines used at polling places and (b) incorporates a restriction on voting methods purportedly buried in § 1's enumeration of voter qualifications. (See Appendix A at 29-30.) Neither conclusion is tenable, particularly under the rules of construction requiring all interpretive doubts to be resolved in favor of In the case of Act 77's mail-in voting procedures, the secrecy requirement is met through the use of "secrecy envelopes" in which voters must insert their completed ballots. See 25 P.S. § 3150.16(a); Pa. Democratic Party v. Boockvar, 238 A.3d 345, 353, 378–80 (Pa. 2020) (discussing PA. CONST. art. VII, § 4). upholding Act 77. Article VII, § 4 is unambiguously broad. If its framers had intended to limit the General Assembly's authority over methods to "voting machines," or to "in-person" voting

methods, they could easily have done so. They did not. See Solebury Twp. v. Dept. of Envt'l Prot., 928 A.2d 990, 1005 (Pa. 2007) (broad language should be given broad construction, particularly where public policy favored such a construction); accord United States v. IBM Corp., 517 U.S. 843, 861 (1996) (rejecting construction of constitutional provision that "cannot be squared with the broad language of the Clause").

Further, it is well settled that the term "prescribed by law" refers to statutory law. See Commonwealth v. Carcia, 517 A.2d 956, 957-58 (Pa. 1986) (construing constitutional phrase "imposed by law" to refer to legislative enactments); D.C. v. Georgetown & T. Ry. Co., 41 F.2d 424, 426 (D.C. Cir. 1930) ("'Prescribed by law,' when used in Constitutions, generally means prescribed by statutes."). Had the framers intended § 4 to bear the meaning suggested by the Commonwealth Court, the provision would have been written differently, e.g.: "such other method as may be prescribed by law, subject to the limitations [purportedly] set forth elsewhere in this Article."

Article VII, § 14—the other provision on which Petitioners rely—further undermines their interpretation of § 1. According to Petitioners' reading of § 1, a person cannot be a qualified elector unless she votes in person in her election district. But that interpretation cannot be reconciled with the plain language of § 14, which provides that certain "qualified electors" must be given "a manner" of

voting from outside their election district when they are "absent from the municipality of their residence" on Election Day. PA. CONST. art. VII, § 14. If Petitioners' reading of § 1 were correct, § 14 would be oxymoronic because a person voting other than in person in her election district could, ipso facto, never be a "qualified voter." In contrast, if the language of § 1 is given its natural meaning, § 14 makes perfect sense: The Legislature must provide certain categories of "qualified voters"—that is, voters who satisfy the age, citizenship, and durational-residency requirements of § 1—with "a manner" of voting absentee. PA. CONST. art. VII, § 14. See Commonwealth ex rel. Paulinski v. Isaac, 397 A.2d 760, 766 (Pa. 1979) (when deciding between two interpretations of a constitutional provision, courts should adopt the interpretation that avoids contradictions and difficulties in implementation).

The latter interpretation of § 1 gives meaning to all its terms. Each absentee voter under § 14 must "have resided in the election district where he or she shall offer to vote at least sixty (60) days immediately preceding the election," just as he or she must "have resided in the State ninety (90) days immediately preceding the election." PA. CONST. art. VII, § 1. In other words, that absentee voter cannot "offer to vote" in an election district other than the one in which her residence is located. For example, an elector residing in Philadelphia cannot vote for the commissioners of Allegheny County, just as an elector residing in one election

district cannot vote in the judge-of-elections race of another election district. Indeed, the language of Section 14 expressly recognizes and complies with this requirement. See PA. CONST. art. VII, § 14 (providing that the Legislature must provide "for the return and canvass of [absentee electors'] votes in the election district in which they respectively reside" (emphasis added).) See In re Canvass of Absentee Ballots of 1967 Gen. Election, 245 A.2d 258, 264 (Pa. 1968) (recognizing that the clear purpose of this constitutional language is to ensure "the counting of each [absentee] vote … in such a manner that the computation appears on the return in the district where it belongs" (emphasis added)). (iii) The History of the "Offer to Vote" Provision, as Well as Evidence of How It Was Commonly Understood at the Time of Its Adoption, Confirms That the Provision Does Not Limit Voting Methods

The history of the "offer to vote" language, which first appeared in the 1838 Pennsylvania Constitution, supports the same conclusion. Before 1838, the Constitution imposed no limitation on the physical location where an elector could complete his ballot, leaving that issue to the General Assembly. Chase, 41 Pa. at 417. Exercising that authority in 1813, the General Assembly permitted Pennsylvanians in military service to vote "at such place as may be appointed by the[ir] commanding officer," so long as they were more than two miles from their

usual polling place at the time of the election. Act of Mar. 29, 1813, ch. 152, 2012-2013 Pa. Laws 213.

The 1838 Constitution left unchanged two of the three sections in Article III of the 1790 Constitution—notably including the section addressing voting methods. Compare PA. CONST. of 1790, art. III, §§ 2-3, with PA. CONST. of 1838, art. III, §§ 2-3. But the 1838 Constitution amended the list of voter qualifications in Section 1. Voters now had to establish residency not only in Pennsylvania, but also in a particular election district: To "enjoy the rights of an elector," a citizen had to "hav[e] resided in the State one year, and in the election district where he offers to vote, ten days immediately preceding [the] election." PA. CONST. of 1838, art. III, § 1.

The introduction of this election-district residency requirement reflected the growing use of registry laws, "the main object of which was to identify the legal voter, before the election came on," and to restrict him to voting "in his appropriate ward or township." Chase, 41 Pa. at 418. Tying voters to particular election districts had obvious benefits: It helped prevent electors from fraudulently casting multiple ballots in a single election—one in each of several different election districts—and ensured that votes in electoral contests for local offices would be cast only by residents of the relevant locality. See id.; In re Fry, 71 Pa. at 306-07 ("Thus an actual fixed residence and home, as the means of identifying the elector,

and securing the public against frauds, was the evident purpose of the district residence.").

The debates of the Pennsylvania Constitutional Convention of 1837-38 confirm that the purpose of the new election-district residency requirement was not to mandate a particular method of voting, or to preclude any particular method of voting, but rather to limit each elector to voting in a particular election district's electoral contests. The delegate who proposed the residency requirement, Emanuel Reigart, explained that the committee of the whole had already decided that a qualified elector must have been assessed a tax at least ten days before the election. 9 John Agg, PROCEEDINGS AND DEBATES OF THE CONVENTION OF THE

CONSTITUTION, COMMENCED AT HARRISBURG, ON THE SECOND DAY OF MAY 1837, at 296 (1838). In Reigart's view, "[a] man must have been a resident in the district ten days before he could vote, so that a sufficient time would be allowed for him to be assessed." Id. When he explained the need for this new requirement, Reigart conspicuously said nothing about voting methods.

A Washington County delegate, Walter Craig, also addressed the purpose of the amendment. Craig worried that, without the district residency requirement, an elector, though resident in one district, would be "entitled … to vote at elections in any other place"; he would be permitted to "vote in any district, ward, or borough

where he may choose," regardless of his connection to it. Id. at 300. "The object of the amendment is to prevent this amalgamation, so to speak, of electors from different parts of the state; it is to keep within their own proper districts." Id.

Delegate James Biddle put the point of the amendment plainly: "Those who resided in a particular district, were the persons who ought alone to be entitled to vote in that district, because they were the persons to be affected by the election in that district." Id. at 309. Biddle also noted that the amendment would have the salutary effect of preventing a particular kind of election fraud, in which "one voter giv[es] in a vote at perhaps [multiple] wards in the [same] city … on the same day." Id. Preventing such fraud appeared to be a chief object of the residency requirement's proponents. Near the end of the debate, another delegate warned that the amendment was needed to prevent the sort of "notorious" frauds that reportedly afflicted Baltimore, where "two men … had gone round to every ward except one, and deposited their votes." Id. at 318. "They had no particular place of residence, and therefore, could say they lived in all those wards." Id.

Absolutely nowhere do the Convention debates suggest that the residency requirement would invalidate the Act of March 29, 1813—which had been in effect for nearly 25 years—or otherwise restrict the General Assembly's authority to prescribe how residents of an election district could vote in that district's contests. Indeed, in offering the residency amendment, Delegate Reigert emphasized that it

"could do no possible harm to any human being," Agg, supra, at 296—an unthinkable statement if the amendment stripped the right to vote from soldiers stationed outside their election district.

The General Assembly that followed had the same opinion as the Convention delegates: the 1838 Constitution did not limit electors to voting in person at polling places in their election district. Less than seven months after the adoption of the new Constitution was announced in the General Assembly on December 11, 1838, see Agg, supra, at 260-62, the General Assembly enacted an election law that, like the Act of March 29, 1813, permitted soldiers located outside of their election district of residence to vote via a kind of absentee ballot. Act of July 2, 1839, No. 192, § 43, 1838-39 Pa. Laws 519, 528; see Chase, 41 Pa. at 416-17. The statute required military officers, whom the Act made judges of elections, to "transmit through the nearest post office, a return [of the votes cast by the soldiers], together with the tickets, tally lists and lists of voters, to the prothonotary of the county in which such electors would have voted, if not in military service." Act of July 2, 1839, § 47 (emphasis added). (iv) High-Court Decisions in Other Jurisdictions Underscore That the Commonwealth Court Misinterpreted Article VII, § 1

This understanding of the language in the Pennsylvania Constitution was not confined to those who wrote it, or those who ratified it, or those in the General

Assembly who operationalized it. It was also (and remains) widespread in other states that adopted the same "offer to vote" language in their constitutions while imposing residency requirements on electors. As supreme courts in those states have recognized, this language does not prohibit civilian absentee or mail-in voting statutes like Act 77. "[A]lthough our Constitution prescribes the qualifications of electors[,] it does not prescribe the manner or form of holding elections, [and] it [is] within its constitutional power for the Legislature to provide that an offer to vote in the township or ward in which the elector resides, c[an] be made [by electors physically located outside of their township or ward at the time of the election]." Lemons v. Noller, 63 P.2d 177, 185 (Kan. 1936). Indeed, "[a]n offer to vote may be made in writing, and that is what the absent voter does when he selects his ballots and attaches his signature to the form and mails the sealed envelope to proper official[s]." Jenkins v. State Bd. of Elections, 104 S.E. 346, 349 (N.C. 1920). As the Missouri Supreme Court explained in construing a voter-qualifications provision analogous to Article VII, § 1 of the Pennsylvania Constitution: "It is clear that this section does not undertake to prescribe the manner in which a choice shall be expressed, or a vote cast, or the ballots prepared, deposited, or counted, but merely the qualifications of the voters. It is true, under this provision, a person can vote only in the place of his residence, but this

constitutes no inhibition against any particular method the Legislature may provide to enable him to so vote." Straughan v. Meyers, 187 S.W. 1159, 1162 (Mo. 1916).

As these cases recognize, the construction of "offer to vote" proffered by Petitioners here—and accepted by the Commonwealth Court—requires a tortured reading of the constitutional text:

> To suppose that the draftsmen of the Constitution paused in the writing of these elaborate provisions relating to these different subjects [i.e., voting qualifications, registration and prerequisites] and interrupted the sequence of thought to digress and to interpolate the requirement that the voter must be personally present to tender his ballot on the day of election, and that in this unusual way and by this equivocal language they intended to inhibit the General Assembly from passing [an absentee voting] statute, … ignores fundamental rules of construction. The method of voting is elsewhere [in the constitution at issue] specifically and unequivocally committed to the legislative discretion. Moore v. Pullem, 142 S.E. 415, 421-22 (Va. 1928)

(refusing to construe the phrase "the precinct in which he offers to vote" as imposing a requirement of in-person voting). As the Montana Supreme Court put the point:

> In order … to hold that the clause 'at which he offers to vote' was

> intended to fix the place or describe the manner of voting, we must assume that the learned men who drafted [the qualifications provision], stopped short in the midst of defining the qualifications of an elector and injected an idea of an entirely different character; but no one familiar with the rudiments of English would undertake to define qualifications and place or manner of voting, by the use of the language employed in [the voter-qualifications provision]. Goodell v. Judith Basin Cnty., 224 P. 1110, 1114 (Mont. 1924). * * *

It is unsurprising that so many people, in so many settings, have understood "offer to vote" language this way. On Petitioners' contrary view, a relative clause modifying a durational-residency requirement in a provision delimiting who may vote, see PA. CONST. art. VII, § 1, should be construed as an oblique prohibition on voting methods for all electors in Pennsylvania—notwithstanding that a separate constitutional provision expressly gives the General Assembly nearly unrestricted authority to prescribe the "method[s]" of voting, PA. CONST. art. VII, § 4. This contravenes basic rules of grammar and syntax, and it cannot be reconciled with the Constitution's text, structure, or history. At an absolute minimum, Petitioners' argument turns the fundamental principles of constitutional interpretation discussed above—which require courts to sustain legislative enactments unless they "clearly, palpably, and plainly" violate the Constitution—

directly on their head. See Pennsylvanians Against Gambling, 877 A.2d at 393. (b) Act 77 Does Not Render Article VII, § 14 Superfluous

Petitioners contend that there would have been no reason for § 14 if Article VII, § 1 did not require in-person voting at polling places. (See R.279a (contending that Act 77 "makes [Article VII, § 14] moot").) According to Petitioners, § 14's prescription of "specific circumstances" in which the Legislature is required to allow absentee voting must be read as affirmatively prohibiting voters who do not fall into the prescribed categories from voting by mail. (R.277a.) But Petitioners' argument is at odds with the Constitution's plain language. Article VII, § 14 does not permit the Legislature to provide a method for certain voters to cast their ballot other than in person; it requires the Legislature to do so. See PA. CONST. art. VII, § 14 ("The Legislature shall … provide a manner in which [certain specific groups of absentee electors] may vote …." (emphasis added)). That the Legislature is constitutionally required to allow certain groups of electors to vote other than in person does not suggest—let alone carry the "necessary implication," see Appeal of Lewis, 67 Pa. 153, 165 (1870)—that the Legislature is prohibited from allowing others to do so.

This is no minor textual point. An earlier version of the Pennsylvania Constitution said "may" instead of "shall." See 1957 Pa. Laws 1019. This change from "may" to "shall"—given no weight by the Commonwealth Court below—

was significant because it underscored that Article VII, § 14 sets a floor for when absentee voting must be allowed; it does not establish a ceiling defining when it is forbidden. See, e.g., Mathews v. Paynter, 752 F. App'x 740, 744 (11th Cir. 2018) (distinguishing "shall" from "may" and noting that the former term does not impliedly limit government authority); see also Zimmerman v. O'Bannon, 442 A.2d 674, 677 (Pa. 1982) (refusing "to ignore the mandatory connotation usually attributed to the word 'shall'"); Haughey v. Dillon, 108 A.2d 69, 72 (Pa. 1954) ("A change of language in subsequent statutes on the same matter indicates a change of legislative intent."). Thus, the Pennsylvania Constitution provides that the General Assembly must allow voters in the enumerated categories to cast absentee ballots, but may also go further—by exercising its broad powers to "prescribe[]" the permissible "method[s]" of voting, PA. CONST. art. VII, § 4—and allow other categories of voters to vote by mail. 15

This interpretation is supported not only by constitutional text and structure, but also by decades of history, during which time the Election Code has continuously allowed categories of voters not named in Article VII, § 14 to vote absentee. See, e.g., 25 P.S. § 3146.1(b) (military spouses) (enacted 1963); 25 P.S. § 2602(z.3) (electors on vacations) (enacted 1968).16 Soon after the current Constitution was ratified in 1968, this Court rejected a challenge to some of these expansions when they were still young, albeit on standing grounds. Kauffman v.

Osser, 271 A.2d 236 (Pa. 1970). So far as Respondents are aware, no other challenges to these enactments were ever brought. Thus, for virtually the entire Contrary to Petitioners' unsupported assertion, this interpretation does not render § 14 superfluous, but rather gives it an essential purpose: It provides constitutional rights to certain groups of voters, which the General Assembly must respect and may not take away.

Acceptance of Petitioners' argument would, at least impliedly, invalidate these decades-old provisions as well as Act 77. life of the current Constitution, the Election Code has provided for absentee voting beyond the scope of the requirements in Article VII, § 14. This fact reinforces what the plain language of the constitutional provision dictates: § 14 requires the General Assembly to facilitate voting for certain groups; it does not prohibit the General Assembly from aiding others. 17 3. The Commonwealth Court's Reliance on Two Cases from Earlier Constitutional Epochs Was Misplaced

Rather than meaningfully grapple with the interpretive issues set forth above, the Commonwealth Court relied almost exclusively on two cases decided under earlier versions of the Pennsylvania Constitution. See Chase v. Miller, 41 Pa. 403 (1862); In re Contested Election in Fifth Ward of Lancaster City, 126 A. 199 (Pa. 1924). Not only is the analysis in these cases flawed, but material provisions of the Constitution have changed in the interim. As discussed above, under the

current Constitution, the Election Code has long allowed categories of The Commonwealth Court noted that the Pennsylvania General Assembly began, but did not complete, the process of amending the Pennsylvania Constitution in S.B. 413 of 2019. But this fact is of no relevance to the proper interpretation of Article VII. On its face, the proposed amendment would not merely have clarified that the General Assembly may allow mail-in voting. That amendment would have prohibited the General Assembly from requiring any voter to vote in person at a polling place. See S.B. 413 (amendment would have provided that statutes prescribing the "manner" of voting "may not require a qualified elector to physically appear at a designated polling place on the day of the election"). Put differently, Respondents' interpretation of the Pennsylvania Constitution in no way renders the content of the proposed constitutional amendment superfluous. The same is true, of course, of the post-1968 amendments to Article VII, § 14, on which Petitioners and the Commonwealth Court also rely. Contrary to the Commonwealth Court's suggestion (see Appendix A at 32), none of those amendments was superfluous because each of them required the General Assembly to allow absentee voting for the classes of persons at issue, giving those persons constitutional rights. voters not named in Article VII, § 14, to vote by mail. In short, the cases cited by Petitioners are inapposite. They readily can—and should—be distinguished. (a)

The Cases on Which Commonwealth Court Relied, Which Were Decided Under Different Constitutions Containing Different Language, Are Inapposite

The Chase Court did not consider a voting method remotely similar to the secure, confidential mail-in ballot procedures established by Act 77. Chase invalidated a statute on the basis that the Legislature had improperly authorized Civil War military commanders to form battlefront election districts and polling stations at out-of-state military camps and to hold elections therein, bereft of any of the key features that protect elections administered by civil authorities:

> [The statute at issue] permits the ballot-box, according to the court below, to be opened anywhere, within or without our state, with no other guards than such as commanding officers, who may not themselves be voters, subject to our jurisdiction, may choose to throw around it; and it invites soldiers to vote where the evidence of their qualifications is not at hand; and where our civil police cannot attend to protect the legal voter, to repel the rioter, and to guard the ballots after they have been cast. Chase, 41 Pa. at 424. Indeed, the Chase Court believed that this extraterritorial polling-place location and election-district administration scheme not only "open[ed] a wide door for most odious frauds," but that such frauds had actually been committed: "[P]olitical speculators … prowl[] about the military camps watching for opportunities to destroy true ballots and

substitute false ones, to forge and falsify returns, and to cheat citizen and soldier alike out of the fair and equal election provided for by law." Id. at 425.

Unsurprisingly, when it considered the meaning of materially identical "offer to vote" language in its own state constitution the Supreme Court of North Carolina found Chase inapposite:

> [Chase] differs very materially from the [case] under consideration. The substance of that decision, as we read it, was that under the Constitution of Pennsylvania the right of a soldier to vote is confined to and must be exercised in the election district where he resided when he entered the military service, and that the Legislature could not authorize a military commander to form an election district and hold an election therein.
>
> The election laws which attempted to confer the right of suffrage upon federal soldiers absent on military service … are wholly unlike in principle, as well as in detail, the North Carolina Absent Voters Act.

Jenkins, 104 S.E. at 349 (rejecting a constitutional challenge to a civilian absentee voting statute because an "offer to vote … may be made in writing, and that is what the absent voter does when he selects his ballots and attaches his signature to the form, and mails the sealed envelope to proper official[s]").

Petitioners ignore the above-discussed analysis in Chase and instead rely heavily on a cherry-picked, context-free discussion of the "offer to vote" language in Article III, § 1 of the 1838 Constitution—and Chase's suggestion that the 1838 Constitution "undoubtedly" required each voter "to make manual delivery of the ballot to [elections] officers" at their respective polling places. Chase, 41 Pa. at 419. But the Chase Court expressly acknowledged that its conclusion was based on the "offer to vote" language in what was then Article III, § 1 in combination with the language of Article III, § 2. See Chase, 41 Pa. at 419. Article III, § 2 was subsequently amended and became Article VII, § 4 of the 1968 Constitution. At the time of Chase, however, not only did this provision not give the General Assembly near-plenary authority over the "method" of voting; it did not give the General Assembly any discretion whatsoever. See PA. CONST. of 1838, art. III, § 2 (requiring that all popular elections be "by ballot"); PA. CONST. of 1968, art. VII, § 4 (requiring that all popular election be "by ballot or by such other method as may be prescribed by law").

That change alone is sufficient to distinguish Chase's interpretation of the Constitution of 1838—and, in particular, its statement that, under the earlier charter, "[t]he ballot c[ould] not be sent by mail or express," Chase, 41 Pa. at 419. See Moore, 142 S.E. at 422 (refusing to construe the phrase "the precinct in which he offers to vote," which appeared in the voter-qualifications provision of the

Virginia Constitution, as imposing a requirement of in-person voting, particularly because "[t]he method of voting is elsewhere specifically and unequivocally committed to the legislative discretion").

Nor does Lancaster City, decided in 1924, control Petitioners' challenge under the current Constitution dating from 1968. At issue in Lancaster City was a statute allowing the return of ballots by voters who, "by reason of [their] duties, business or occupation," are "absent from [their] lawfully designated election district[s]" on election day. 126 A. at 200. The Lancaster City Court acknowledged the new constitutional provision expressly granting the Legislature authority to determine the "method" of voting (which had been added in 1901, see 1901 Pa. Laws 882), but the Court appeared to conclude that, whatever the method by which the ballot was returned to county officials, the place of the elector's "'offer to vote' must still be in the district where the elector resides." 126 A. at 201. The Court found it significant that the then-existing Constitution "made [it] so that absent voting in the case of soldiers is permissible." Id.; see PA. CONST. of 1874, art. VIII, § 6. The Court believed this provision implicated "[t]he old principle that the expression of an intent to include one class," i.e., military electors, "excludes another," i.e., non-military electors. 126 A. at 201. Because the challenged statute allowed non-military electors to vote from outside their election districts, the Court invalidated it. Id.

As discussed above, however, the constitutional provisions addressing absentee voting have not remained static in the century that has elapsed since Lancaster City. In 1949, an amendment was adopted providing that "[t]he General Assembly may, by general law, provide a manner in which" disabled war veterans could vote by absentee ballot. 1949 Pa. Laws 2138 (emphasis added). Similar amendments in 1953 and 1957 provided that the General Assembly "may" allow certain other categories of absentee voters. 1953 Pa. Laws 1496; 1957 Pa. Laws 1019. In 1967, however, the soldier absentee ballot provision relied on by Lancaster City, which had been adopted in 1864, was repealed altogether. See 1967 Pa. Laws 1048. At the same time, still another amendment (carried over into the 1968 Constitution) provided that "[t]he Legislature shall, by general law, provide a manner in which" various categories of voters can vote by absentee ballot. 1967 Pa. Laws 1048 (emphasis added); see PA. CONST. art. VII, § 14.

The legislative history of the 1967 amendment confirms what the plain text indicates: the General Assembly changed "may" to "shall" precisely because it intended to convert what was formerly a limited grant of legislative discretion into a constitutional right that the legislature could not take away. The bill proposing the amendment was entitled, "A Joint Resolution proposing that article eight, section nineteen of the Constitution [i.e., what was then the absentee voting provision] be amended by making it mandatory rather than permissive for the

General Assembly to provide for absentee voting." House Legislative Journal, Session of 1966, Vol, 1, No, 1, at 518 (July 12, 1996) (discussing House Bill 398) (emphasis added).18 What drove this change was the General Assembly's The substance of House Bill 398, which addressed only the absentee voting provision in what was then Article VIII of the 1874 Constitution, was later incorporated into a proposed constitutional amendment—which was passed by the General Assembly and then ratified—that conviction—diametrically opposed to the anti-democratic sentiments expressed in Chase, see infra Section VII.B.3.b—that "[t]he right to vote is among the most precious rights we have." House Legislative Journal, Session of 1966, Vol, 1, No, 1, at 518 (July 12, 1996) (statement of Representative Fineman).

The 1967 amendment is a decisive basis on which to distinguish Lancaster City—and, in particular, Lancaster City's reliance on the interpretive canon of expressio unius. Where a provision says the legislature "may" do something in certain circumstances, it is natural to infer that the legislature may not do that thing in other circumstances. But where a provision says the legislature "must" do something in certain circumstances, it is unnatural to infer that it may never otherwise do that thing. Especially where the constitutional text otherwise reflects broad legislative discretion, the sensible inference is that the legislature "must"

meet certain obligations and is otherwise free to enact policy as it deems fit. See, e.g., Mathews, 752 F. App'x at 744.

Legislative history supports this interpretation of the 1967 amendment's effect. As the majority leader of the House explained, the intention behind the amendments to the elections article of the Constitution was "to make our constitution less restrictive and permit the legislature to adopt … statutory acts." also addressed other provisions in Article VIII. See Senate Legislative Journal, Session of 1966, Vol. 1, No. 1, at 303-304 (amending House Bill 422). Pennsylvania Legislative Journal, Session of 1967, Vol. 1, No. 1, at 54 (Jan. 3, 1967) (statement of Representative Donaldson). It is unsurprising, then, that around the same time the 1967 amendment was passed, the General Assembly expanded the scope of voters allowed to vote absentee well beyond the boundaries of the specific groups identified in the Constitution. See, e.g., 25 P.S. § 2602(z.3) (electors on vacations, or sabbatical leaves). That history is entirely consistent with the General Assembly's constitutional power to enact the mail-in voting provisions in Act 77.

These facts readily distinguish Lancaster City. At a minimum, given these changes, Petitioners cannot show that Article VII, § 14 "clearly, palpably, and plainly" sets a ceiling on absentee—let alone mail-in—voting. (b) Regardless,

Chase and Lancaster City Were Wrongly Decided and Are Irreconcilable With Settled Principles of Constitutional Interpretation

Even if Chase and Lancaster City were on all fours with this case (and they are not), they should not be followed: they were wrong at the time they were decided—as compellingly shown by numerous decisions in other jurisdictions, see supra pages 51-53—and are even more clearly erroneous under modern jurisprudence governing constitutional challenges to duly enacted statutes. See Stilp, 905 A.2d at 938-39 (setting forth applicable standards).

The Lancaster City Court appeared to view itself as largely bound by Chase. The root of the problem, then, lies in that deeply problematic 1862 opinion.

First, the Chase opinion was expressly informed by the anti-democratic sentiments of its era. Indeed, the 1838 Constitution was the first in Pennsylvania history—and, thankfully, also the last—to restrict voting to "white" men. Chase, 41 Pa. at 418 (construing PA. CONST. of 1838, art. III, § 1). The Chase opinion not only noted this reactionary trajectory; Chase appeared to celebrate it. See, e.g., id. at 426 ("[The Pennsylvania Constitution of 1838] withholds [suffrage] altogether from four-fifths of the population, however much property they may have to be taxed, or however competent in respect of prudence and patriotism, many of them may be to vote. And here let it be remarked, that all our successive constitutions have grown more and more astute on this subject."). These anti-democratic

convictions are wholly alien to the current Constitution, including its election provisions, as interpreted by this Court. See, e.g., League of Women Voters, 178 A.3d at 804 (construing Free and Equal Elections Clause).

Second, as explained more fully above, see supra pages 46-50, 58-59, Chase's interpretation of the durational-residency requirement in Article III, § 1 is utterly unmoored from the text, structure, and history of the 1838 Constitution. In fact, Chase is downright dismissive of evidence concerning how the phrase "offer to vote" was actually understood at the time of ratification. See 41 Pa. at 417 (describing the General Assembly as "careless" in re-enacting a law inconsistent with the Chase Court's interpretation of the 1838 Constitution). Where a contemporary reader would expect to find actual analysis of the text, structure, and original public understanding of Article III, § 1, Chase rushes instead to prioritize the Court's own policy views regarding how elections ought to be administered—and asserts that the Constitution must "undoubtedly" reflect the same beliefs. Id. at 419. The Court even opines that a voter's "neighbours" should be allowed to "challenge" his vote at the time it is cast, see id.—a suggestion utterly ungrounded in anything the 1838 Constitution actually said, but fully supported by the Chase Court's anti-democratic view of the right to vote. This mode of "interpretation" is irreconcilable with well-settled, inveterate principles of constitutional jurisprudence. See Yocum, 161 A.3d at 239 (the constitutional text is the

"touchstone" of interpretation). It is unsurprising, then, that in interpreting the same "offer to vote" phrase in other state constitutions, multiple courts have squarely—and persuasively—rejected Chase's construction. See supra pages 51-53; see also Note, Review of Absentee Voters Legislation in Pennsylvania, 73 U. PA. L. REV. 176 (1925) (cataloguing the numerous flaws in the Chase and Lancaster City decisions); Stephen E. Friedman, Mail-In Voting and the Pennsylvania Constitution, 60 DUQ. L. REV. (forthcoming 2022), https://papers.ssrn.com/sol3/papers.cfm?abstract_id=4029825.

Accordingly, if this Court concludes it cannot distinguish Chase and Lancaster City, it should not hesitate to overrule them. It is well settled that "th[is] Court's general faithfulness to precedent is not sufficient justification to buttress judicial decisions proven wrong in principle …. [T]he doctrine of stare decisis is not a vehicle for perpetuating error, but a legal concept which responds to the demands of justice …." Tincher v. Omega Flex, Inc., 104 A.3d 328, 352 (Pa. 2014). These precepts apply with greater force when "the desired break with the past involves an interpretation of a constitutional section." Tarantino v. Allentown State Hosp., 351 A.2d 247, 249 (Pa. 1976) (opinion in favor of reversal with respect to decision of equally divided court) (citing Cardozo, The Nature of the Judicial Process 149-52 (1921)). Indeed, this Court has declared that "stare decisis has no real place in constitutional law when," as here, "the validity of another

statute [i.e., a statute different than the one invalidated under the earlier constitutional decision] is under consideration." Commonwealth ex rel. Margiotti v. Lawrence, 193 A. 46, 48 (Pa. 1937). Even in cases where this Court's "predecessors" invalidated a "similar statute," "if, after having fully considered the matter, [this Court is] nevertheless impelled to the conclusion that the later enactment is constitutional, [the Court] cannot decide otherwise, unless [it is] to forget [its] duty to support the Constitution as the supreme law." Heisler v. Thomas Colliery Co., 118 A. 394, 395 (Pa.), aff'd, 260 U.S. 245 (1922).

As this Court has explained, a contrary rule would shackle the Commonwealth to erroneous decisions reflecting the view of a majority of the seven justices sitting at the time the initial case was decided:

> As a function of our system of government, this Court has the final word on matters of constitutional dimension in Pennsylvania. Our charter … is not easily amended and any errant interpretation is not freely subject to correction by any co-equal branch of our government, other than this Court. For this reason, we are not constrained to closely and blindly re-affirm constitutional interpretations of prior decisions which have proven to be unworkable or badly reasoned. Holt, 38 A.3d at 759 n.38 (internal citations omitted);

accord Agostini v. Felton, 521 U.S. 203, 235 (1997) (explaining that the case for

adhering to precedent "is at its weakest when we interpret the Constitution because our interpretation can be altered only by constitutional amendment or by overruling our prior decision").

Here, not only do Chase and Lancaster City rest on untenable interpretations of the Constitution, but there are no reliance interests weighing in favor of continued adherence. See Am. Trucking Ass'ns v. McNulty, 596 A.2d 784, 788-90 (Pa. 1991) (noting the role of reliance interests in the doctrine of stare decisis); Tarantino, 351 A.2d at 249 (same). To the contrary, as noted above, the Pennsylvania Election Code has, virtually from the inception of the current Pennsylvania Constitution, allowed a broader scope of voting by mail than Petitioners' constitutional interpretation would permit. See supra pges 55-56. Even more significantly, millions of Pennsylvania citizens have now relied on the availability of mail-in voting in four elections. Put simply, the applicable reliance interests in this case weigh decisively in favor of sustaining Act 77's mail-in voting procedures, not eliminating them.

Further, the precedents on which Petitioners rely do not rest on the need to defend any purported constitutional rights against the government. To the contrary, as shown above, the mail-in voting provisions of Act 77 directly further the purpose of the Pennsylvania Constitution's Free and Equal Elections Clause. See supra pages 35-37. Put differently, the arena at issue—namely, the General

Assembly's power to regulate election procedures, drawing on current technological, logistical, and administrative capabilities, so as to facilitate voters' exercise of the franchise—is one in which the deference owed to the policy judgments of the legislature should be at its zenith. See Torsilieri, 232 A.3d at 596 ("the wisdom of a public policy is one for the legislature"). Correlatively, when considering past judicial decisions abridging this legislative power, the force of stare decisis is at its nadir.

C. The Bonner Petitioners' Federal Constitutional Claims Are Wholly Derivative of Their Fatally Flawed State Constitutional Claim—and Fail for Other Reasons as Well

The Bonner Petitioners have cross-appealed from the Commonwealth Court's decision not to address their federal constitutional claims. These claims cannot salvage their Petition. Each of the federal claims is predicated on the assertion that Act 77's mail-in voting procedures violate the Pennsylvania Constitution. Count II of the Bonner Petition alleges that "[w]hen a state legislature violates its state constitution[] … in furtherance of its … authority to regulate federal elections and appoint [presidential] electors," the state legislature also "violates the U.S. Constitution's delegation to the states of the lawmaking power for federal elections." (R.282a (alleging violation of U.S. CONST. art. I, §§ 2, 4, art. II, § 1, amend. XVII).) Count III alleges that "[a]llowing mail-in ballots to be

counted which," in Petitioners' view, "exceed the limitations for permitted absentee voting under the Pennsylvania Constitution," effects vote dilution violating the "14th Amendment Due Process and Equal Protection Guarantees." (R.283a.) Because each of these federal-law claims rests on the premise that Act 77 violates the Pennsylvania Constitution, the analysis above disposes of the federal claims as well.

In fact, the federal claims fail irrespective of the merits of the state-law claim. Contrary to the Bonner Petitioners' unsupported assertion, the U.S. Constitution's "delegat[ion of] authority to make laws for federal elections to the states' legislative power" (R.281a.) does not convert every alleged violation of state election law into a federal constitutional claim. See King v. Whitmer, 505 F. Supp. 3d 720, 737 (E.D. Mich. 2020) (finding "no case … supporting such an expansive approach"). Nor can the Bonner Petitioners bootstrap their state-law claim into a claim for violation of the U.S. Constitution's Fourteenth Amendment. See Donald J. Trump for President, Inc. v. Boockvar, 493 F. Supp. 3d 331, 391 (W.D. Pa. 2020) ("A violation of state law does not state a claim under § 1983 …." (quoting Shipley v. Chi. Bd. of Election Comm'rs, 947 F.3d 1056, 1062 (7th Cir. 2020) (citing Snowden v. Hughes, 321 U.S. 1, 11 (1944)))); Bognet v. Sec'y Commonwealth of Pa., 980 F.3d at 336, 354–55 (3d Cir. 2020) (rejecting similar vote-dilution claim and citing same line of precedent), vacated on mootness

grounds sub nom. Bognet v. Degraffenreid, 141 S. Ct. 2508 (2021); Bowyer v. Ducey, 506 F. Supp. 3d 699, 711–12 (D. Ariz. 2020) (same). Accordingly, even if the Bonner Petitioners' claims under the Pennsylvania Constitution had merit (and they do not), their federal claims would fail as a matter of law.

CONCLUSION

For the foregoing reasons, Respondents respectfully request that this Court vacate the Orders below for lack of jurisdiction and dismiss the petitions for review with prejudice.

Respectfully submitted,

this February 15, 2022.

/s/ Robert A. Wiygul
Robert A. Wiygul (I.D. No. 310760)
Counsel for Respondents/Appellants

CERTIFICATE OF COMPLIANCE

I hereby certify that this brief complies with Pa.R.A.P. 124, 127 and 2135(d) of the Pennsylvania Rules of Appellate Procedure. It contains 16382 words, excluding the cover page, table of contents, table of authorities, signature blocks, and this certificate (Pa.R.A.P. 2135(d)).

CERTIFICATE OF FILING AND SERVICE

I hereby certify that on the _____ I electronically filed the foregoing with the Prothonotary of the Supreme Court of Pennsylvania, and that on the _____ I served true and correct copies of it on the following counsel of record: